

Second Treatise of Government

John Locke

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[Brackets] enclose editorial explanations. Small ·dots· enclose material that has been added, but can be read as though it were part of the original text. Occasional •bullets, and also indenting of passages that are not quotations, are meant as aids to grasping the structure of a sentence or a thought. Every four-point ellipsis indicates the omission of a brief passage that seems to present more difficulty than it is worth.—The division into numbered sections is Locke's.

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different powers, we can get clearer about how the powers differ by looking at the different relationships in which the man stands: as ruler of a commonwealth, father of a family, and captain of a galley.

3. So: I take **political power** to be a **right** to •make

laws—with the death penalty and consequently all lesser penalties—for regulating and preserving property, and to •employ the force of the community in enforcing such laws and defending the commonwealth from external attack; all this being only for the public good.

Chapter 2: The state of nature

4. To understand political power correctly and derive it from its proper source, we must consider what state all men are *naturally* in. In this state men are perfectly free to order their actions, and dispose of their possessions and themselves, in any way they like, without asking anyone's permission—subject only to limits set by the law of nature.

It is also a state of equality, in which no-one has more power and authority than anyone else; because it is simply obvious that creatures of the same species and status, all born to all the same advantages of nature and to the use of the same abilities, should also be equal •in other ways•, with no-one being subjected to or subordinate to anyone else, unless •God•, the lord and master of them all, were to declare clearly and explicitly his wish that some one person be raised above the others and given an undoubted right to dominion and sovereignty

5. The judicious •Richard• Hooker regards this natural equality of men as so obvious and unquestionable that he bases on it men's •obligation to love one another, on which he builds their •duties towards each other, from which •in turn• he derives the great •maxims of justice and charity.

Here are his words:

A similar natural inducement has led men to realize that they have as much duty to love others as to love themselves. Things that are equal must be measured by a single standard; so if I inevitably want to receive some good—indeed as much good from every man as any man can want for himself—how could I expect to have *any part* of my desire satisfied if I am not careful to satisfy the similar desires that other men, being all of the same nature, are bound to have? To offer them anything inconsistent with their desire will be to grieve them as much as •it would grieve• me; so that if I do harm I must expect to suffer, because there is no reason why others should show more love to me than I have shown to them. Thus, my desire to be loved as much as possible by my natural equals gives me a natural duty to act towards them with the same love. Everyone knows the rules and canons natural reason has laid down for the guidance of our lives on the basis of this relation of equality between ourselves and those who are like us.

6. But though this is a state of •liberty, it isn't a state of •licence in which there are *no* constraints on how people behave. A man in that state is absolutely free to dispose of himself or his possessions, but he isn't at liberty to *destroy* himself, or even to destroy any created thing in his possession unless its destruction is required for some nobler purpose. The state of nature is governed by a law that creates obligations for everyone. And reason, which is that law, teaches anyone who takes the trouble to consult it, that *because we are all equal and independent, no-one ought to harm anyone else in his life, health, liberty, or possessions*. This is because

- we are all the work of one omnipotent and infinitely wise maker;
- we are all the servants of one sovereign master, sent into the world by his order to do his business;
- we are all the property of him who made us, and he made us to last as long as *he* chooses, not as long as *we* choose;
- we have the same abilities, and share in one common nature, so there can't be any rank-ordering that would authorize some of us to destroy others, as if we were made to be *used* by one another, as the lower kinds of creatures *are* made to be used by us.

Everyone is obliged to preserve himself and not opt out of life willfully, so for the same reason everyone ought, when his own survival isn't at stake, to do as much as he can to preserve the rest of mankind; and except when it's a matter of punishing an offender, no-one may take away or damage anything that contributes to the preservation of someone else's life, liberty, health, limb, or goods.

7. So that •all men may be held back from invading the rights of others and from harming one another, and so that •the law of nature that aims at the peace and preservation

of all mankind may be obeyed, the enforcement of that law of nature (in the state of nature) is in every man's hands, so that everyone has a right to punish law-breakers as severely as is needed to hinder the violation of the law. For the law of nature, like every law concerning men in this world, would be futile if no-one had power to enforce it and thereby preserve the innocent and restrain offenders. And in the state of nature if *anyone* may punish someone for something bad that he has done, then *everyone* may do so. . . .

8. That is how in a state of nature one man comes to have a •legitimate• power over another. It isn't an unconditional power, allowing him to use a captured criminal according to the hot frenzy or unbridled extremes of his own will; but only a power to punish him so far as calm reason and conscience say is proportionate to his crime, namely as much punishment as may serve for •reparation and •restraint—for •those two are the only reasons why one man may lawfully harm another, which is what we call 'punishment'. By breaking the law of nature, the offender declares himself to live by some rule other than that of reason and common fairness (which is the standard that God has set for the actions of men, for their mutual security); and so he becomes dangerous to mankind because he has disregarded and broken the tie that is meant to secure them from injury and violence. This is an offence against the whole •human• species, and against the peace and safety that the law of nature provides for the species. Now, every man, by the right he has to preserve mankind in general, may restrain and if necessary *destroy* things that are noxious to mankind; and so he can do to anyone who has transgressed that law as much harm as may make him repent having done it, and thereby deter him—and by his example deter others—from doing the same. So for this reason *every man has a right to enforce the law of nature and punish offenders*.

9. No doubt this will seem a very strange doctrine to some people; but before they condemn it, I challenge them to explain what right any king or state has to put to death or otherwise punish a foreigner for a crime he commits in their country. The right is certainly not based on their laws, through any permission they get from the announced will of the legislature; for such announcements don't get through to a foreigner: they aren't addressed to him, and even if they were, he isn't obliged to listen. . . . Those who have the supreme power of making laws in England, France or Holland are to an Indian merely like the rest of the world, men without authority. So if the law of nature didn't give every man a power to punish offences against it as he soberly judges the case to require, I don't see how the judiciary of any community can punish someone from another country; because they can't have any more power over him than every man can *naturally* have over another.

10. As well as •the crime that consists in violating the law and departing from the right rule of reason—crime through which man becomes so degenerate that he declares that he is deserting the principles of human nature and becoming vermin—there is often •transgression through which someone does harm to someone else. In the latter case, the person who has been harmed has, in addition to the general right of punishment that he shares with everyone else, a particular right to seek reparation from the person who harmed him; and anyone else who thinks this just may also join with the injured party and help him to recover from the offender such damages as may make satisfaction for the harm he has suffered.

11. So there are two distinct rights: **(i)** the right that everyone has, to punish the criminal so as to restrain him and prevent such offences in future; **(ii)** the right that an

injured party has to get reparation. Now, a magistrate, who by being magistrate has the common right of punishing put into his hands, can by his own authority **(i)** cancel the punishment of a criminal offence in a case where the public good doesn't demand that the law be enforced; but he can't **(ii)** cancel the satisfaction due to any private man for the damage he has received. The only one who can do that is the person who has been harmed. The injured party has the power of taking for himself the goods or service of the offender, by right of •self-preservation; and everyone has a power to punish the crime to prevent its being committed again, by the right he has of preserving •all mankind, and doing everything reasonable that he can to that end. And so it is that in the state of nature everyone has a power to kill a murderer, both •to deter others from this crime that no reparation can make up for, by the example of the punishment that everyone inflicts for it, and also •to secure men from future crimes by this criminal; the murderer has renounced reason, the common rule and standard God has given to mankind, and by the unjust violence and slaughter he has committed on one person he has declared war against all mankind, so that he can be destroyed as though he were a lion or a tiger. . . . This is the basis for the great law of nature, *Whoever sheds man's blood, by man shall his blood be shed*. Cain was so fully convinced that everyone had a right to destroy such a criminal that after murdering his brother he cried out 'Anyone who finds me will slay me'—so plainly was this law written in the hearts of all mankind.

12. For the same reason a man in the state of nature may punish lesser breaches of the law of nature. 'By death?' you may ask. I answer that each offence may be punished severely enough to make it a bad bargain for the offender, to give him reason to repent, and to terrify others from offending in the same way. Every offence that can be •committed in

the state of nature may also be •punished in the state of nature—and punished in the same way (as far as possible) as it would be in a commonwealth. I don't want to go into the details of the law of nature or of its punitive measures, •but I will say this much•:- It is certain that there is a •law of nature, which is as intelligible and plain to a reasonable person who studies it as are the •positive laws of commonwealths. [See the explanation of 'positive' after section 1.] It may even be *plainer*—as much plainer as •reason is •plainer•, easier to understand, than the fancies and intricate •theoretical• contrivances of men who have tried to find words that will further their conflicting hidden interests. For that is what has gone into the devising of most of the legislated laws of countries. Really, such laws are right only to the extent that they are founded on the law of nature, which is the standard by which they should be applied and interpreted.

13. To this strange doctrine •of mine•, namely that in the state of nature everyone has the power to enforce the law of nature, I expect this objection to be raised:

It is unreasonable for men to be judges in their own cases, because self-love will bias men in favour of themselves and their friends. And on the other side, hostility, passion and revenge will lead them to punish others too severely. So nothing but confusion and disorder will follow, and that is why God has—as he certainly *has*—established government to restrain the partiality and violence of men.

I freely allow that civil government is the proper remedy for the drawbacks of the state of nature. There must certainly be great disadvantages in a state where men may be judges in their own case; someone who was so •unjust as to do his brother an injury will (we may well suppose) hardly be so •just as to condemn himself for it! But I respond to the objector as follows [the answer runs to the end of the section]:- If

the state of nature is intolerable because of the evils that are bound to follow from men's being judges in their own cases, and government is to be the remedy for this, •let us do a comparison•. On the one side there is the •state of nature; on the other there is

•government where *one man*—and remember that absolute monarchs are only men!—commands a multitude, is free to be the judge in his own case, and can do what he likes to all his subjects, with no-one being allowed to question or control those who carry out his wishes, and everyone having to put up with whatever he does, whether he is led by reason, mistake or passion.

How much *better* it is in the state of nature, where no man is obliged to submit to the unjust will of someone else, and someone who judges wrongly (whether or not it is in his own case) is answerable for that to the rest of mankind!

14. It is often asked, as though this were a mighty objection: 'Where are there—where ever *were* there—any men in such a state of nature?' Here is an answer that may suffice in the mean time:- The world always did and always will have many men in the state of nature, because all monarchs and rulers of independent governments throughout the world are in that state. I include in this *all* who govern independent communities, whether or not they are in league with others; for the state of nature between men isn't ended just by their making a pact with one another. The only pact that ends the state of nature is one in which men agree together mutually to enter into one community and make one body politic. . . . The promises and bargains involved in bartering between two men on a desert island, . . . or between a Swiss and an Indian in the woods of America, are binding on them even though they are perfectly in a state of nature in relation to one another; for truth and promise-keeping belongs to men

•as men, not •as members of society—i.e. as a matter of natural law, not positive law.

15. To those who deny that anyone was ever in the state of nature, I oppose the authority of the judicious Hooker, who writes:

The laws. . . of nature bind men absolutely, just *as men*, even if they have no settled fellowship, no solemn agreement among themselves about what to do and what not to do. What naturally leads us to seek communion and fellowship with other people is the

fact that on our own we haven't the means to provide ourselves with an adequate store of things that we need for the kind of life our nature desires, a life fit for the dignity of man. It was to make up for *those* defects and imperfections of the solitary life that men first united themselves in politic societies. (*The Laws of Ecclesiastical Polity*, Bk 1, sect. 10)

And I also affirm that all men are naturally in the state of nature, and remain so until they *consent* to make themselves members of some political society. I expect to make all this very clear in later parts of this discourse.

Chapter 3: The state of war

16. The state of war is a state of enmity and destruction. So when someone declares by word or action—not in a sudden outburst of rage, but as a matter of calm settled design—that he intends to end another man's life, he puts himself into a state of war against the other person; and he thereby exposes *his* life to the risk of falling into the power of the •other person or anyone that joins with •him in his defence and takes up his quarrel. For it is reasonable and just that I should have a right to destroy anything that threatens me with destruction, because the fundamental law of nature says that men are to be preserved as much as possible, and that when not everyone can be preserved the safety of the innocent is to be preferred. ·In line with this·, I may destroy a man who makes war on me or has revealed himself as an enemy to my life, for the same reason that I may kill a wolf or a lion; because such men are not under the ties of the common law

of reason, have no rule except that of force and violence, and so may be treated as beasts of prey—dangerous creatures that will certainly destroy me if I fall into their power.

17. So it comes about that someone who tries to get another man into his absolute power thereby puts himself into a state of war with the other, for such an attempt amounts to a declaration of a plan against the *life* of the other man. If someone wants to get me •into his power without my consent, I have reason to conclude that he would use me as he pleased when he had got me •there, and would destroy me if he wanted to; for no-one can want to have me in his absolute power unless it's to compel me by force to something that is against the right of my freedom, i.e. to make me a slave. To be sure of my own survival I must be free from such force; and reason tells me to look on him—the person who

wants me in his power—as an enemy to my survival, wanting to take away the freedom that is the fence to it. So someone who tries to enslave me thereby puts himself into a state of war with me. Someone wants to take away •the freedom of someone else must be supposed to have a plan to take away •everything else from the person, because freedom is the foundation of all the rest; and that holds in a commonwealth as well as in the state of nature.

18. This makes it lawful for me to kill a thief who hasn't done me any harm or declared any plan against my life, other than using force to get me in his power so as to take away my money or whatever else he wants. No matter what he claims he is up to, he is using force without right, to get me into his power; so I have no reason to think that he won't, when he has me in his power, take everything else away from me as well as my liberty. So it is lawful for me to treat him as someone who has put himself into a state of war with me, i.e. to kill him if I can; for that is the risk he ran when he started a war in which he is the aggressor.

19. This is the plain difference between the state of •nature and the state of •war. Some men—notably Hobbes—have treated them as the same; but in fact they are as distant from one another as a state of •peace, good will, mutual assistance and preservation is distant from a state of •enmity, malice, violence and mutual destruction. A state of nature, properly understood, involves

men living together according to reason, with no-one on earth who stands above them all and has authority to judge between them.

Whereas in a state of war

a man uses or declares his intention to use force against another man, with no-one on earth to whom the other can appeal for relief.

It is the lack of such an appeal that gives a man the right of war against an aggressor, not only in a state of nature but even if they are both subjects in a single society. [The rest of this section expands on Locke's version in ways that •dots• can't easily indicate.] If a thief has already stolen all that I am worth and is not a continuing threat to me, I may not harm him except through an appeal to the law. But if he is now setting on me to rob me—even if it's just my horse or my coat that he is after—I may kill him. There is the law, which was made for my protection, but there is no time for it to intervene to save me from losing my goods and perhaps losing my life (and if I lose that there is no reparation). Furthermore, it is the thief's fault that there is no time for an appeal to the judge that stands over him and me—namely, the law—and so I am allowed to make my own defence, and to be at war with the thief and to kill him if I can. What puts men into a state of nature is the lack of a common judge who has authority; the use of unlawful force against a man's person creates a state of war, whether or not there is a common judge and (therefore) whether or not they are in a state of nature.

20. But for men who are in a society •under a government•, the state of war ends when the actual force ends; and then those on each side •of the trouble• should equally submit to the fair determination of the law. . . . But in the state of nature, where there are no positive laws or judges with authority to appeal to, once a state of war has begun it *continues*—with the innocent party having a right to destroy the other if he can—until the aggressor offers peace, and seeks reconciliation on terms that will make up for any wrongs he has done and will give the innocent person security from then on. What if the situation is like this?

There is time and opportunity for an appeal to the law, and to legally constituted judges, but the remedy is not available because of a manifest perverting

of justice, a barefaced twisting of the laws so that they protect or even reward the violence or injuries perpetrated by some men or some party of men.

In such a case it is hard to think we have anything but a state of war. For wherever violence is used and injury done, even if it is done by people appointed to administer justice and is dressed up in the name, claims, or forms of law, it is still violence and injury. The purpose of the law is to protect and get compensation for the innocent, by an unbiased treatment of all who come under it; and when this is not *genuinely* done, war is made upon the sufferers, and

they—having nowhere on earth to appeal to for justice—are left to the only remedy in such cases, an appeal to heaven.

21. ·In a state of nature· where there is no authority to decide between contenders, and the only appeal is to heaven, every little difference is apt to end up in war; and that is one great reason for men to put themselves into society, and leave the state of nature. For where there is an authority, a power *on earth* from which relief can be had by appeal, the controversy is decided by that power and the state of war is blocked. [The remainder of the section discusses, in the light of this, a passage in the Old Testament, *Judges xi*.]

Chapter 4: Slavery

22. The •natural liberty of man is

to be free from any superior power on earth, and not to be under the will or legislative authority of men but to be ruled only by the law of nature.

The liberty of man •in society is

to be under no legislative power except the one established by consent in the commonwealth; and not under the power of any will or under restraint from any law except what is enacted by the legislature in accordance with its mandate.

Freedom then is not what Sir Robert Filmer tells us (*Observations on Hobbes, Milton, etc.*, page 55), namely a liberty for everyone to do what he wants, live as he pleases, and not be tied by any laws. Rather, ·freedom is one of two things·. •Freedom of nature is being under no restraint except the law

of nature. •Freedom of men under government is having a standing rule to live by, common to everyone in the society in question, and made by the legislative power that has been set up in it; a liberty to follow one's own will in anything that isn't forbidden by the rule, and not to be subject to the inconstant, uncertain, unknown, arbitrary will of another man. [Here and elsewhere, Locke uses 'arbitrary' not in our current sense of something like •'decided for no reason' or 'decided on a whim' or the like; but rather in a broader sense, current in his day, as meaning merely •'decided' or 'depending upon someone's choice'. In that older and weaker sense of the word, the fear of being under someone's 'arbitrary will' is just a fear of being at the mercy of *whatever he chooses to do to you*, whether or not his choice is 'arbitrary' in the now-current sense.]

23. [In this section Locke writes that a man doesn't have the power to take his own life. He presumably means that a man